

STATE OF NEW YORK

9099--A

IN SENATE

February 3, 2026

Introduced by Sens. BASKIN, SCARCELLA-SPANTON -- read twice and ordered printed, and when printed to be committed to the Committee on Veterans, Homeland Security and Military Affairs -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the veterans' services law, in relation to establishing the veterans' services organization capital support program

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. The veterans' services law is amended by adding a new article 4 to read as follows:

ARTICLE 4

VETERANS' SERVICES ORGANIZATION CAPITAL SUPPORT PROGRAM

Section 50. Definitions.

51. Establishment and criteria.

52. Eligible purposes.

8 § 50. Definitions. For the purposes of this article "eligible entity"
9 means a veteran service organization as defined pursuant to Title 38
10 U.S. Code Section 5902 and that also is organized as a not-for-profit
11 organization pursuant to the Title 26 U.S. Code Section 501(c), which
12 may include but shall not be limited to the American Legion, Veterans of
13 Foreign Wars, Disabled American Veterans, Paralyzed Veterans of America,
14 American Veterans and Vietnam Veterans of America.

15 § 51. Establishment and criteria. There is hereby established the
16 veterans' services organization capital support program for the eligible
17 purposes under section fifty-two of this article. The commissioner shall
18 develop criteria for the disbursement of funds authorized under section
19 fifty-two of this article to an eligible entity.

20 § 52. Eligible purposes. Within amounts specifically appropriated
21 therefore, the commissioner shall award grants not to exceed two hundred
22 thousand dollars for payment of the capital costs of construction,
23 improvement, repairs, rehabilitation, or reconstruction of facilities
24 owned by eligible entities pursuant to this article, and for the acqui-
25 sition of related equipment with a useful life of not less than ten

EXPLANATION--Matter in italics (underscored) is new; matter in brackets [-] is old law to be omitted.

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1 years. Such capital costs may include, but shall not be limited to,
2 engineering and design costs. Upon submission of a cost estimate by the
3 contractor and signed by the eligible entity, and provided that the
4 eligible entity be the owner of the property or have a lease agreement
5 proving tenant status dating back at least five years or more and
6 approved by the department, the commissioner is authorized to provide
7 twenty-five percent of an awarded grant up front to the eligible entity,
8 without any reimbursement requirement. No funds authorized under this
9 section shall be used as a required match or be considered a local share
10 to other state programs or to leverage state aid or grants.

11 § 2. Severability clause. If any clause, sentence, paragraph, subdivi-
12 sion, section or part of this act shall be adjudged by any court of
13 competent jurisdiction to be invalid, such judgment shall not affect,
14 impair, or invalidate the remainder thereof, but shall be confined in
15 its operation to the clause, sentence, paragraph, subdivision, section
16 or part thereof directly involved in the controversy in which such judg-
17 ment shall have been rendered. It is hereby declared to be the intent of
18 the legislature that this act would have been enacted even if such
19 invalid provisions had not been included herein.

20 § 3. This act shall take effect immediately.